

24STCV30777 24STCV30777

County: los-angeles

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Plaintiff Adam Pirozzi ("Pirozzi") sued Defendant General Motors LLC ("GM") under the Song-Beverly Consumer Warranty Act ("SBA") asserting breaches of the express and implied associates associated with a 2018 Chevrolet Silverado that GM manufactured and that Pirozzi purchased.

Pending before the Court is Pirozzi's motion for an order compelling GM to provide further responses to certain requests for production of documents ("RFPs") that Piorzzi propounded on GM.

In resolving disputes over plaintiffs' requests to defendant automobile manufacturers for the production of documents in SBA cases, this Court has relied on the template set forth below as a guide on what is discoverable.

1. The Warranty Policy and Procedure Manual published by Defendant and provided to its authorized repair facilities, within the State of California, from the date of purchase of the subject vehicle to the present.
2. Any internal analysis or investigation regarding defects alleged in plaintiff's complaint in vehicles of the same year, make, and model as the subject vehicle. This includes Recall Notices and Technical Service Bulletins.
3. Policies and procedures used to evaluate customer complaints relating to defects alleged in plaintiff's complaint in vehicles purchased in California of the same year, make and model as the subject vehicle.
4. Policies and procedures used to evaluate customer requests for repurchase pursuant to the Song-Beverly Consumer Warranty Act, from the date of purchase to the present.
5. Repair orders and invoices concerning the subject vehicle.
6. Communications with dealer, factory representative and/or call center concerning the subject vehicle.
7. Warranty claims submitted or and/or approved by Defendant concerning the subject vehicle.

Applying this template to the record before the Court regarding the RFPs in dispute here, it appears to the Court that GM has provided complete responses that comply with the Code of Civil Procedure. Accordingly, the Court is denying Pirozzi's motion.